

**SUBSTITUTE FOR
HOUSE BILL NO. 4477**

A bill to amend 1976 PA 451, entitled
"The revised school code,"
(MCL 380.1 to 380.1852) by adding section 1170c.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 **Sec. 1170c. (1) By not later than December 31, 2027, the**
2 **department, in consultation with water safety experts, shall**
3 **develop or adopt, and make available to school districts and public**
4 **school academies, a model program of instruction on water safety**
5 **for pupils in grades K to 8. The model program of instruction on**
6 **water safety must include, at a minimum, all of the following**
7 **topics, as appropriate:**

8 **(a) The proper use of flotation devices.**

9 **(b) Awareness of water conditions.**



1 (c) The proper supervision of swim areas.

2 (d) Safe behaviors in and around the water.

3 (e) The importance of pool barriers and fencing.

4 (f) The importance of water safety and swim skills training.

5 (g) The importance of avoiding alcohol and substance use with
6 water recreation.

7 (h) The importance of cardiopulmonary resuscitation for
8 drowning victims and the importance of administering
9 cardiopulmonary resuscitation.

10 (2) The department, in consultation with water safety experts,
11 shall review the model program of instruction on water safety under
12 subsection (1) at least once every year and shall update and revise
13 the model program of instruction on water safety as needed.

14 (3) Beginning in the 2028-2029 school year, the board of a
15 school district or board of directors of a public school academy
16 shall ensure that each student who is enrolled in grades K to 8 in
17 the school district or public school academy receives age- and
18 grade-appropriate instruction on water safety that includes, at a
19 minimum, the topics described in subsection (1). The water safety
20 instruction must be provided as part of a physical education
21 course. Each school district and public school academy may
22 customize the instruction on water safety based on geographic
23 characteristics and other special circumstances applicable to the
24 school district or public school academy.

25 (4) By not later than July 1, 2027, the department of health
26 and human services shall develop, and provide to the department, an
27 informational notice in English, Spanish, and Arabic containing
28 information and best practices regarding water safety.

29 (5) The department shall share the informational notice



1 developed under subsection (4) with all public and nonpublic
2 schools.

3 (6) Beginning July 1, 2028, the department of health and human
4 services shall update annually the informational notice developed
5 under subsection (4) to account for any change in water safety best
6 practices. The updated notice must be provided annually to the
7 department by not later than July 1.

8 (7) Beginning October 1, 2028, and every October 1 thereafter,
9 the board of a school district or intermediate school district, the
10 board of directors of a public school academy, or the governing
11 body of a nonpublic school shall distribute the informational
12 notice developed under subsection (4) to the parent or legal
13 guardian of each student enrolled in the school district,
14 intermediate school district, public school academy, or nonpublic
15 school. The informational notice may be distributed electronically
16 or by mail.

17 (8) By not later than October 1, 2028, the department shall
18 post the English, Spanish, and Arabic versions of the informational
19 notice developed under subsection (4) on the department's website.

20 (9) By not later than October 1, 2028, the board of a school
21 district or intermediate school district, the board of directors of
22 a public school academy, or the governing body of a nonpublic
23 school shall post links to the department webpages described in
24 subsection (8) on the website of the school district, public school
25 academy, or nonpublic school.

26 (10) The department, the department of health and human
27 services, a school district, an intermediate school district, a
28 public school academy, a nonpublic school, and any officers, board
29 members, or employees of those institutions are immune from civil



1 liability, both personally and professionally, for any damages
2 allegedly caused by, arising out of, or relating to the
3 informational notice developed under subsection (4).